

Paraguay 2024 Human Rights Report

Executive Summary

The human rights situation in Paraguay did not meaningfully improve during the year, particularly regarding freedom of expression. The congress took actions that targeted civil society and the press, intimidating those who spoke out against abuse of power.

Significant human rights issues included credible reports of: torture or cruel, inhuman, or degrading treatment or punishment; arbitrary arrest and detention; and serious restrictions on freedom of expression and media freedom, including enforcement of or threat of criminal or civil laws in order to limit expression.

The government took credible steps to identify and punish low- and midranking officials who committed human rights abuses, including torture, but impunity for high-level politicians, police, and security officials was widely alleged.

Section 1. Life

a. Extrajudicial Killings

There were no official reports the government or its agents committed

arbitrary or unlawful killings during the year. Media occasionally reported allegations of police and other security personnel inappropriately using lethal force in security operations.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

There were several instances of political actors using threats and intimidation to restrict freedom of expression and the press to silence opponents.

Congress created a Bicameral Commission for the Investigation of Money Laundering, Contraband, and Other Linked Crimes, composed of members of the ruling party. The ruling party used the commission to intimidate critics with false allegations and threats of legislative action with significant penalties. In September, the commission demanded detailed information from organizations implementing internationally funded projects, following a coordinated effort by ruling party-affiliated media to accuse nongovernmental organizations (NGOs) of improprieties. Days later, some

submissions were leaked on social media and falsely alleged to be evidence of corruption by specific, named journalists and civil society organization activists. Congress also enacted a law that codified government control of civil society. Some political actors publicly threatened to prosecute journalists for reporting on abuse of power and corruption by government officials.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

Individual authorities sometimes used laws prohibiting libel, slander, and defamation to restrict public discussion or retaliate against journalists, media outlets, or media owners.

NGOs reported criminal groups sought to inhibit freedom of expression, including for members of the press, through threats of violence and harassment, especially in areas along the border with Brazil.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for the right of workers (except for the armed forces and police) to form and join independent unions, bargain collectively, and conduct legal strikes. The law prohibited binding arbitration or retribution against union organizers and strikers. There were several restrictions on

these rights. The law required that industrial unions have a minimum of 20 members to register with the Ministry of Labor. Workers were not allowed to be members of more than one union, even if they had more than one employer. Strikes had to be directly linked to workers' occupations.

Candidates for office in trade unions had to work for a company and be active members of the union.

The government generally did not effectively enforce laws related to freedom of association, the right to bargain collectively, and the right to strike. The Ministry of Labor was responsible for enforcing labor rights, registering unions, mediating disputes, and overseeing social security and retirement programs. The government rarely investigated antiunion activities, and reportedly only when requested by an aggrieved party.

Employers who failed to recognize or to bargain collectively with a registered union or who blacklisted employees faced fines. Penalties were commensurate with those for analogous violations such as civil rights violations, but they were generally ineffective and were rarely applied against violators. Employers often retaliated by firing strikers and union leaders and rarely faced consequences. Administrative and judicial procedures were subject to lengthy delays, mishandling, and corruption. Employer and professional associations had undue influence over some private-sector unions.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The law did not provide for a national minimum wage for all economic sectors, but a standard minimum wage applied to most sectors, with additional minimum wages stipulated for specific sectors, such as cattle raising. Minimum wages for all sectors were above the official estimate for the poverty income level.

The law stipulated a maximum of eight hours of work per day. The law provided for a standard legal workweek of 48 hours (42 hours for night work with one and one-half days of rest) and required employers to pay higher wages for overtime hours, depending on the time of day and day of the week the work was performed.

The Ministry of Labor continued campaigns aimed at employers and workers to raise public awareness of labor laws and worker rights. Alleged violations of wage, hour, or overtime laws were common in cattle ranching, the textile industry, and for domestic workers. There were reports of employers making illegal wage deductions and paying workers by commission as a

means of avoiding minimum wage and mandatory social security contributions.

Occupational Safety and Health

The government set occupational safety and health (OSH) standards stipulating conditions of safety, hygiene, and comfort. These standards were current and appropriate for the light manufacturing and construction industries but were rarely applied. OSH experts did not actively identify unsafe working conditions or respond to worker's OSH complaints. Workers were not able to remove themselves from unsafe conditions without jeopardizing their employment. OSH violations were common in the construction, textile, agriculture, and mining sectors.

Wage, Hour, and OSH Enforcement

The Ministry of Labor was responsible for enforcement of wage, hour, and OSH laws. Inspectors had the authority to make unannounced inspections and to initiate sanctions. The number of labor inspectors was insufficient to enforce compliance. Penalties for OSH violations were commensurate with those for crimes such as negligence. Penalties for wage and hour violations were limited to fines. These fines were less severe than penalties for similar crimes such as fraud, which resulted in up to five years' imprisonment. Penalties were rarely applied against violators.

In 2022, the National Institute of Statistics estimated 63 percent of workers

in nonagricultural sectors were in the informal economy, and for workers ages 15 to 19, this increased to 90 percent. Informal-sector workers were not covered by labor laws or inspections.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

The Paraguayan People's Army, a small criminal group in the north-central departments, and its splinter groups allegedly continued to hold three captives: police officer Edelio Morínigo, missing since 2014; farmer Félix Urbieto, missing since 2016; and former Vice President Óscar Denis, missing since 2020. During the year, authorities reported no additional information on the welfare or whereabouts of the three missing men.

Prolonged Detention without Charges

Media and NGOs reported several cases of arbitrary arrest and detention during the year that were not officially reported to authorities. In at least one case, police were accused of intercepting a driver, detaining him without just cause, and demanding payment in exchange for his release.

Lengthy pretrial detention due to judicial backlogs and corruption was a

problem. An insufficient number of judges and judicial officials requesting bribes to advance procedures often caused delays in trials. The law permitted detention without trial for a period equivalent to the minimum sentence associated with the alleged crime, a period that could range from six months to five years. Some detainees were held in pretrial detention beyond the maximum allowed time.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibited such practices, but there were credible reports government officials employed them. Between January 1 and August 31, the Special Human Rights Unit of the Public Ministry (the Attorney General's

Office) opened investigations into 124 allegations of torture and other human rights abuses. There were no convictions during the year.

Unlike for other crimes, torture did not have a statute of limitations or a defined period in which charges, an investigation, or a trial had to be completed. As of October 3, the unit was investigating 954 cases, most of which dated from the Stroessner dictatorship era (1954-89). It was unusual for a case to move to prosecution and sentencing in less than one year due to time-consuming procedural steps and a lack of investigative resources.

Impunity was a problem in the security forces. Authorities often transferred prison guards accused of torture or cruel and degrading treatment and corruption to other units without conducting credible investigations into abuse allegations. Corruption and politicization allegedly contributed to impunity. The Special Human Rights Unit and the semi-independent National Mechanism for the Prevention of Torture both continued to investigate alleged human rights abuses by security forces. Judicial processing of charges, investigations, and prosecutions often took years.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Marriage

The legal minimum age for marriage was 18, but the law permitted marriage for persons ages 16 to 17 with parental consent. The government generally enforced the law.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern.

Provision of First Asylum

The law provided for the granting of asylum or refugee status, and the government had a system for providing protection to refugees.

Resettlement

Persons whose claims of asylum or refugee status were refused could seek other migration options, including obtaining legal permanent residency in the country. The government did not assist in the safe, voluntary return to the home countries of those who were not granted refugee status; it relied on assistance from the Office of the UN High Commissioner for Refugees to facilitate such returns.

d. Acts of Antisemitism and Antisemitic Incitement

The Jewish community numbered fewer than 1,000 members. There were no reports of antisemitic incidents.